

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, NOVEMBER 14, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JPMORGAN CHASE BANK N.A. vs. BRANDON STEWART
Case No. CL24-02763**

Motion to Compel

TENTATIVE RULING

Defendant's motion for default judgment is denied.

"Entry of default by the court clerk is a statutory prerequisite to both a clerk's default judgment [citation] and a default judgment by the court [citation]." (*People v. One 1986 Toyota Pickup* (1995) 31 Cal.App.4th 254, 259.) While Defendant lodged a request for entry of default with the court along with his motion papers, the request was merely stamped "received" and the clerk took no action on the request.

**CAPTIAL ONE, N.A. vs. LAURICE LOVE
Case No. CL24-04701**

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement Against Defendant

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of